



IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH

CWP-19230-2026

Date of decision: 19.06.2026

Mahavir Sharma

...Petitioner

Versus

Union of India and others

...Respondents

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Ms. Amarjit Kaur, Advocate for the petitioner.

Mr. Vipul Aggarwal, Sr. Panel Counsel for UOI.

Mr. Sanjiv Ghai, Additional Standing Counsel with
Mr. Manpreet Singh, Advocate
for respondents No.2 and 3.

DEEPAK GUPTA, J. (ORAL)

By way of this petition filed under Articles 226/227 of the Constitution of India, petitioner prays for issuance of an appropriate writ, especially in the nature of mandamus, directing the respondents to consider his candidature for appointment to the post of Store Officer as raised vide representation dated 30.04.2026 (Annexure P-8) pursuant to the recruitment notice (Annexure P-7) issued by the respondents and also grant due weightage and preference to the long service experience, departmental knowledge and practical exposure attached to the duties to the post of Store Officer by the petitioner while considering his candidature for appointment.

2. It is submitted by learned counsel that petitioner was appointed as Divisional Assistant in Chandigarh State AIDS Control Society, Chandigarh on contractual basis vide appointment letter dated 23.12.2011 and he joined in January 2012. petitioner has been continuously serving



since then. Now the respondents have issued an advertisement for recruitment to the post of Store Officer. Petitioner submits that since he is continuously working in the Store since January 2012, therefore, he should be considered for the post of Store Officer straightway without participating in the recruitment process. Petitioner has made a representation dated 30.04.2026 (Annexure P-8) to consider his candidature for appointment to the post of Store Officer with his pay protection.

3. Notice of motion.

4. Sh. Vipul Aggarwal, Sr. Panel Counsel, accepts notice on behalf of respondent No.1-UOI and informs that petitioner has already applied along with others for the recruitment purpose and that the application is under scrutiny at this stage.

5. On a specific query, learned counsel for the petitioner is unable to convince this Court as to whether the posting of the petitioner on contractual basis in December 2011 on a post different than the post advertised, shall create any right in his favour. In the circumstances, the directions as sought by the petitioner does not deserve to be issued.

6. Dismissed.

19.06.2026

Yogesh

**(DEEPAK GUPTA)
JUDGE**

Whether speaking/reasoned:- Yes/No
Whether reportable:- Yes/No